



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

JAN 18 2002

DOT-E 10596
(THIRD REVISION)

EXPIRATION DATE: December 31, 2003

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Marathon Ashland Pipe Line LLC
Findlay, OH
2. PURPOSE AND LIMITATION:
 - a. This exemption authorizes the use of three non-DOT specification trailer mounted containers described as mechanical displacement meter provers (serial number 130, 253, and 140-1657-2921) for shipment of the Class 3 material identified in paragraph 6 below. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 173.243 in that non-DOT specification packaging is not authorized, except as specified herein.
5. BASIS: This exemption is based on the applications of Marathon Ashland Pipe Line LLC dated December 20, 2001, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

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Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Petroleum crude oil	3	UN1267	I

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packagings are three non-DOT specification containers described as mechanical displacement meter provers mounted on a trailer as shown on various drawings and as described on data sheets on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA). The meter provers bear manufacturers serial number 130, 253 and 140-1657-2921 and are of the bi-directional "U" type design. Each meter prover is designed and constructed to American National Standards Institute (ANSI) Standard B31.4. The pressure vessel is made up of schedule 40 or schedule 80 steel pipes ranging in size from 8 inches to 10 inches. Pipe assembly is by 150 pound ANSI welded flange joints. The maximum service pressure is 285 psig at ambient temperature. Pressure relief devices are not required. In addition:

(1) The pressure rating as determined from the pipe component with the lowest pressure rating must be marked on each prover unit.

(2) Prover must be drained to atmosphere pressure before transportation. During transportation the pressure in the prover may not exceed 25 percent of pipe pressure rating at ambient temperature.

(3) The bumper for the vehicle must meet the requirements of §§ 178.345-8(d) and 393.86.

b. TESTING - Each prover must be visually reinspected once a year and retested once every 5 years at not less than 75 percent of the prover's design pressure in accordance with § 173.32(e). Only meter provers requalified after May 31, 2000 are required to be in conformance with § 173.32(e).

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8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this exemption and the HMR.

b. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

c. MARKING - The outside of each meter prover must be plainly and durable marked "DOT-E 10596".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS:

a. A current copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

b. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

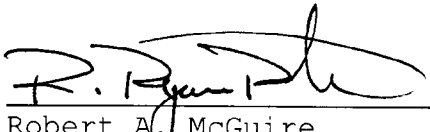
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



Fr Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: ALB